

Syllabus

BOND *v.* UNITED STATESCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE THIRD CIRCUIT

No. 09–1227. Argued February 22, 2011—Decided June 16, 2011

When petitioner Bond discovered that her close friend was pregnant by Bond’s husband, she began harassing the woman. The woman suffered a minor burn after Bond put caustic substances on objects the woman was likely to touch. Bond was indicted for violating 18 U. S. C. § 229, which forbids knowing possession or use, for nonpeaceful purposes, of a chemical that “can cause death, temporary incapacitation or permanent harm to humans,” §§ 229(a); 229F(1); (7); (8), and which is part of a federal Act implementing a chemical weapons treaty ratified by the United States. The District Court denied Bond’s motion to dismiss the § 229 charges on the ground that the statute exceeded Congress’ constitutional authority to enact. She entered a conditional guilty plea, reserving the right to appeal the ruling on the statute’s validity. She did just that, renewing her Tenth Amendment claim. The Third Circuit, however, accepted the Government’s position that she lacked standing. The Government has since changed its view on Bond’s standing.

Held: Bond has standing to challenge the federal statute on grounds that the measure interferes with the powers reserved to States. Pp. 216–226.

(a) The Third Circuit relied on a single sentence in *Tennessee Elec. Power Co. v. TVA*, 306 U. S. 118. Pp. 216–220.

(1) The Court has disapproved of *Tennessee Electric* as authoritative for purposes of Article III’s case-or-controversy requirement. See *Association of Data Processing Service Organizations, Inc. v. Camp*, 397 U. S. 150, 152–154. Here, Article III’s standing requirement had no bearing on Bond’s capacity to assert defenses in the District Court. And Article III’s prerequisites are met with regard to her standing to appeal. Pp. 216–217.

(2) *Tennessee Electric* is also irrelevant with respect to prudential standing rules. There, the Court declined to reach the merits where private power companies sought to enjoin the federally chartered Tennessee Valley Authority (TVA) from producing and selling electric power, claiming that the statute creating the TVA exceeded the National Government’s powers in violation of the Tenth Amendment. In doing so, the Court repeatedly stated that the problem with the power companies’ suit was a lack of “standing” or a “cause of action,” treating those concepts as interchangeable. *E. g.*, 306 U. S., at 139. The ques-